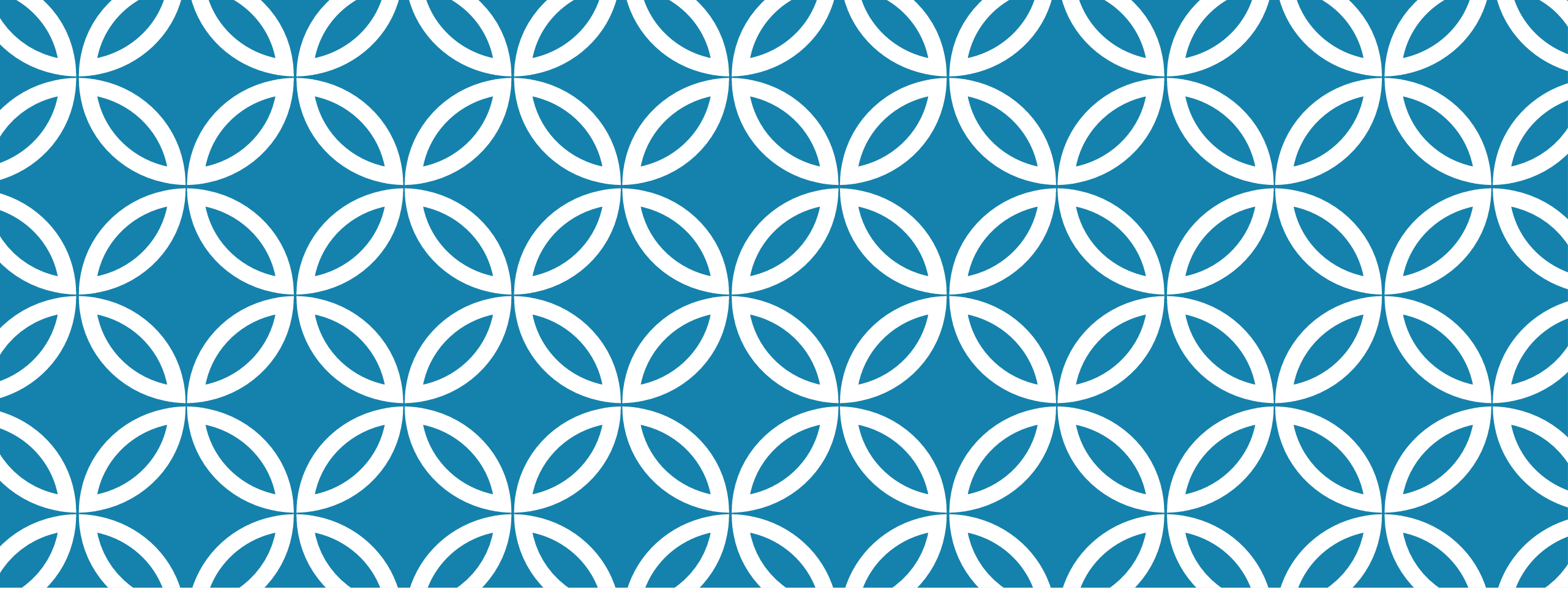
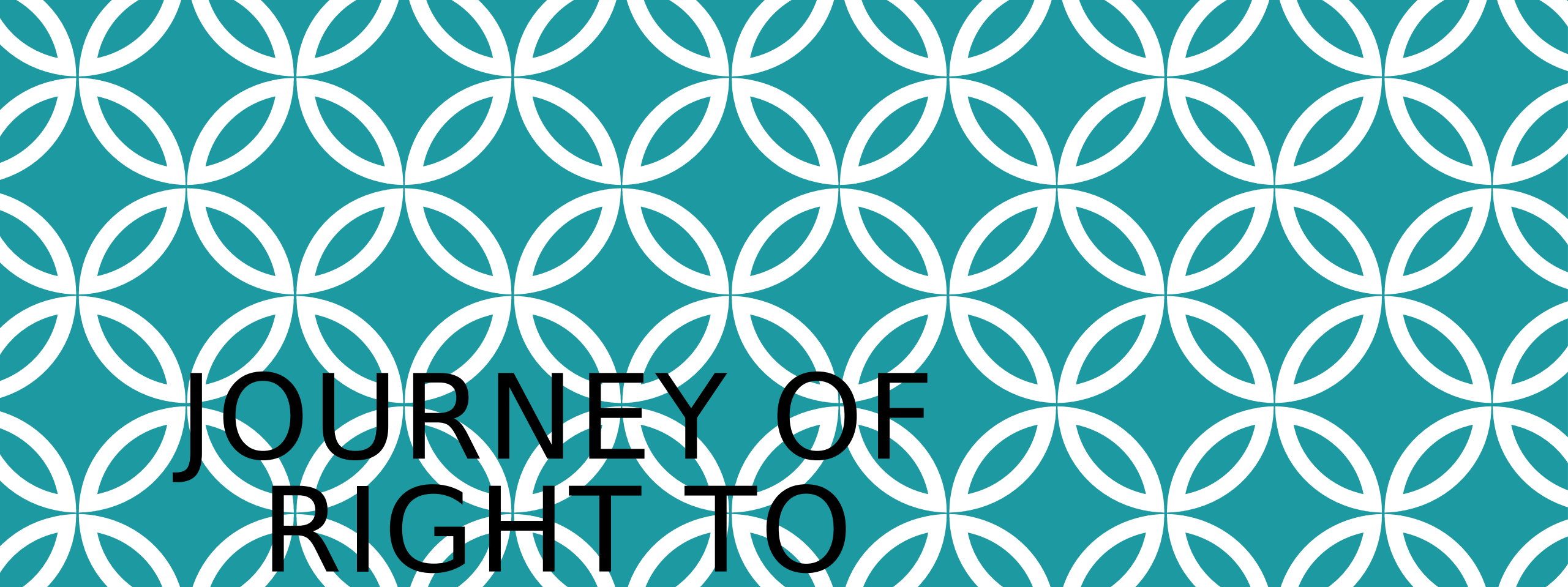




PUBP309: EDUCATION POLICY

**JOURNEY TOWARDS RIGHT TO
EDUCATION**

Shivakumar Jolad
FLAME University



JOURNEY OF RIGHT TO EDUCATION ACT IN INDIA



“I am what I am today because of education. I want every Indian child, girl and boy, to be so touched by the light of education. ... About a hundred years ago a great son of India, **Gopal Krishna Gokhale**, urged the Imperial Legislative Assembly to confer on the Indian people the Right to Education.”

Dr. Manmohan Singh , Speech when the RTE became a law on Apr 1, 2010

GOKHALE'S ATTEMPTS AT INTRODUCING COMPULSORY PRIMARY EDUCATION

1893: Maharaja of Baroda introduces Compulsory Education for boys in Amreli Taluk.

1906: Maharaja of Baroda extends Compulsory Education to rest of the state. (Baroda state Act 1906)

Gokhale- moved a **resolution in Imperial Legislative council - 1911** : “ .. **a beginning should to be made in making the elementary education free and compulsory throughout the country...** *The government should follow the footsteps of other civilized countries and discharge its duties of making the people literate*”.

Compulsory education for **boys** : 6- 10 years. Girls should be exempted on the grounds of practical considerations.



FATE OF GOKHALE'S PROPOSAL

Motion was withdrawn in 1911. Govt of India proposed to look into some aspects of the resolution.

Private Bill introduced in 1912 to provide “**gradual** introduction of free and compulsory education”

Bill was not accepted by GOI- “No popular demand for the compulsory education, local and provincial governments were against it”

Gokhale: “*we of the present generation, can only hope to serve our country by our failures*”

1912-

1930

1917: Vithalbhai Patel is successful in getting the Bill passed - First Law on Compulsory Education passed (Popularly Known as Patel Act)

1918-1930: Every Province in British India gets Compulsory Education Act on its statute book

THE CITY OF BOMBAY PRIMARY EDUCATION ACT, 1920.

CONTENTS.

PREAMBLE.

SECTIONS.

1. Short title, extent and construction.
2. Definitions.
3. Issue of notification making primary education compulsory.
4. Corporation to make provision for primary education.
5. Resolution to be passed before issue of notification.
6. Duty of Education Committee.
7. Duty of parents to cause children to attend school.
8. Meaning of reasonable excuse.
9. Issue of attendance order.
10. Penalty for failure to cause child to attend school.
11. Penalty for employing child liable for compulsory education.
12. Schools' Committee may authorize person to appear.
13. [Repealed.]
14. Remission of fees.
15. Power to exempt particular classes or communities.
16. Withdrawal of notification on default.
17. [Omitted.]
18. Rules.
19. Amendment of section 39 (I) of the principal Act—(Not printed).
20. New section 62B of the principal Act—(Not printed).

The Bombay Primary Education Rules
1924.

(As amended up to 1st September 1933)

CHAPTER X

ENFORCEMENT OF COMPULSION

Bombay
Primary
Education
Act, 1923,
section 18.

Section 19.

In every area of compulsion the parent of every child to whom a scheme applies shall, in the absence of a reasonable excuse as hereinafter provided and if such parent and child ordinarily reside in such area, cause such child to attend an approved school in such area.

A parent shall be deemed to have a reasonable excuse for failure to cause a child to attend an approved school in any of the following cases :—

(a) *where the child is prevented from attending school by sickness, infirmity or other unavoidable cause ;*

(b) *where the child is receiving, otherwise than in an approved school, instruction which in the opinion of the school board is efficient, or has received from the school board a certificate of having already completed his elementary education ;*

(c) *where there is no approved school within a distance to be fixed by the Government in consultation with the school board and measured according to the nearest road from the residence of the child ;*

(d) *where, after due application, entrance to an approved school has been refused to the child and there is no other approved school to which he can be admitted within the distance fixed under clause (c), until such time as the parent is notified that the child can be admitted ;*

(e) *where there is no approved school in the locality in which instruction is given in the vernacular of the child ;*

(f) *where there is no approved school in the locality to which the parent can send the child without exposing it to religious instruction to which the parent objects.*

PRIMARY EDUCATION: COMPULSORY EDUCATION ACTS 1919-1930

Year	Province	Name of the Act	Compulsion whether for Boys or Girls	Whether applicable to Rural or Urban Areas
1919	Punjab	Primary Education Act	Boys	Both
"	United Provinces	"	Both	Municipal
"	Bengal	"	Boys (extended to girls by an amendment in 1932)	"
"	Bihar and Orissa	"	Boys	Both
1920	Bombay	City of Bombay P. E. Act	Both	Applicable to City of Bombay only
"	Central Provinces	P. E. Act	"	Both
"	Madras	Elementary Education Act	"	"
1923	Bombay	P. E. Act	"	Applicable to the whole of the Province except Bombay City
1926	Assam	"	"	Both
"	United Provinces	District Boards P. E. Act	"	To rural areas only
1930	Bengal	Bengal (Rural) P. E. Act	"	"

TABLE II <i>Areas under Compulsion</i>		
Province	Municipalities and Urban Areas	District Boards and Rural Areas
Madras	21	1
Bombay	6	—
United Provinces	25	—
Punjab	57	1,499
Bihar and Orissa	1	3
Central Provinces	3	66
Delhi	1	—
Total	114	1,571

N.B.—The rural areas in the Punjab are the areas served by individual schools.

PROGRESS IN COMPULSORY EDUCATION: 1937-45

Compulsory Primary Education, 1947-48

Province	Age-group under compulsion	Area with boys only under compulsion		Area with boys and girls under compulsion	
		No. of towns and cities	No. of villages	No. of towns and cities	No. of villages
Bihar	6-10	17	—	—	—
Bombay	7-8, 6-11	9	134	110	5,100
C.P. and Berar	6-11, 7-12	34	1,031	—	—
East Punjab	6-11	37	1,420	—	—
Madras	6-14, 6-12	16	31	12	1,607
Orissa	6-12, 6-13, 5-10	1	1	—	—
U.P.*	6-11	36	1,371	3	3
West Bengal	6-10	1	—	—	—
Delhi	6-12	1	7	—	—

*Figures relate to 1946-47.

If these statistics are compared with those of 1936-37, it will be noticed that **the best progress was made in Bombay where compulsion was introduced in several municipal areas and in all villages** with a population of 1,000 or more. .

In **other parts of India, the progress can only be called poor.** When it is remembered that the nation was irrevocably committed to the introduction of compulsory education for boys and girls in the age group of 6 to 14 before 1960-61, it becomes at once evident that the **progress of compulsory education in the past, if it can be called progress at all, was extremely disappointing**

INDIGENOUS SCHEME OF BASIC EDUCATION

Gandhi's proposal: *Free and compulsory primary education could be given to every child if **the process of schooling could be made self supporting by imparting education through a useful and productive craft***

Wardha Conference resolution- 1937: That in the opinion of this conference, *free and compulsory education be provided on a nation-wide scale.*

Zakir Hussain committee recommended that ***Free, universal and compulsory education should be provided for all boys and girls between the ages of 7–14.***

But it emphasized that this *education should center round some basic craft chosen with due regard to the capacity of children and the needs of the locality.*

SARGENT PLAN- 1944

Plan for post war educational developments in India- Indian Independence was almost imminent . CABE accepted report in 1944.

It was the first attempt to develop a **National System for Education in India**. Full fledged educational plan for the future educational reconstruction in India

The report had maintained that in a period of not less than 40 years, the standard of Indian education will be made equivalent to that of England.

- ▣ **Universal, compulsory and free primary or basic education** for all children between the ages 6—11 (junior basic) and 11—14 (senior basic).
- ▣ **Pre-primary education for children between 3 to 6 years of age. (First time)**

PROBLEMS IN ACHIEVING UEE UNDER EDUCATION ACTS

N&N - On Universal Enrollment

- ▢ **Poverty**
- ▢ **Consciousness of parents to send kids** (parental apathy?) ,
- ▢ **Literacy of parents (especially mother)**
- ▢ **Need for Awareness on education-** teachers and local bodies

N&N – Universal Retention

- ▢ Great challenge 1975: **Cohort of 100- in class I - 40 in class V, just 25 in class VIII**
- ▢ **Child Labour**
- ▢ **Lack of remedial courses, Non formal schools (NFE)**
- ▢ **Social and educational: Child marriage, ill health**
- ▢ **Lack of attractiveness of schools:** physical and pedagogical

RTE- JOURNEY POST INDEPENDENCE

1950- [Constitution of India](#)- Article 45, Directive principles of state policy

"The State shall endeavor to provide within a period of ten years from the commencement of this Constitution, for **free and compulsory education for all children** until they complete the age of **fourteen years**."

1964-66-[Kothari commission](#) recommends

- ▮ [Universalization of elementary education](#)
- ▮ [UPE- in five years, UEE in 10 years](#)
- ▮ **Recommended Common School System:** Bring the different social classes and groups together and thus promote the emergence of an egalitarian and integrated society. Each school within the Common School System should be attended by all the children in the neighbourhood.
- ▮ [allocate at least 6% of country's GDP to education.](#)

1976: Education a responsibility of both center and State

NATIONAL POLICY ON EDUCATION 1968

Formed on the basis of the recommendations of the Kothari Education Commission 1964-66.

Free and Compulsory Education (wish list ☐)

- ☐ Strenuous efforts should be made for the early fulfillment of the Directive Principle under Article 45 of the constitution seeking to provide free and compulsory education for all children up to the age of 14.
- ☐ Suitable programmes should be developed to reduce the prevailing wastage and stagnation in schools and to ensure that every child who is enrolled in school successfully completes the prescribed course.

Equalisation of Educational Opportunities -

- ☐ To promote social cohesion and national integration in the **common school system** as recommended by the Education Commission should be adopted.

MOVER TOWARDS UEE

1986: National policy on Education (NPE)-

- Brought **a sense of urgency** for Universal Elementary Education
- It stated : *“Time is the essence, and **unless we act now, we stand in the danger of once again missing the opportunity of education reform, so critical not only for the development of our nation, but our very survival**”*
- recommends **Free and Compulsory education up to 14 years**
- Operation Blackboard (OB), District Institutes of Education and Training (DIET), Schemes on Non-Formal Education (NFE), National Council of Teachers Education (NCTE) etc.

The Program of Action - 1992: District Primary Education Program (DPEP) was started in 8th Five-year Plan- for **universalization of elementary education (before the dawn of 21st Century!)**

UN CONVENTIONS ON THE RIGHTS OF THE CHILD- 1989

Article 28

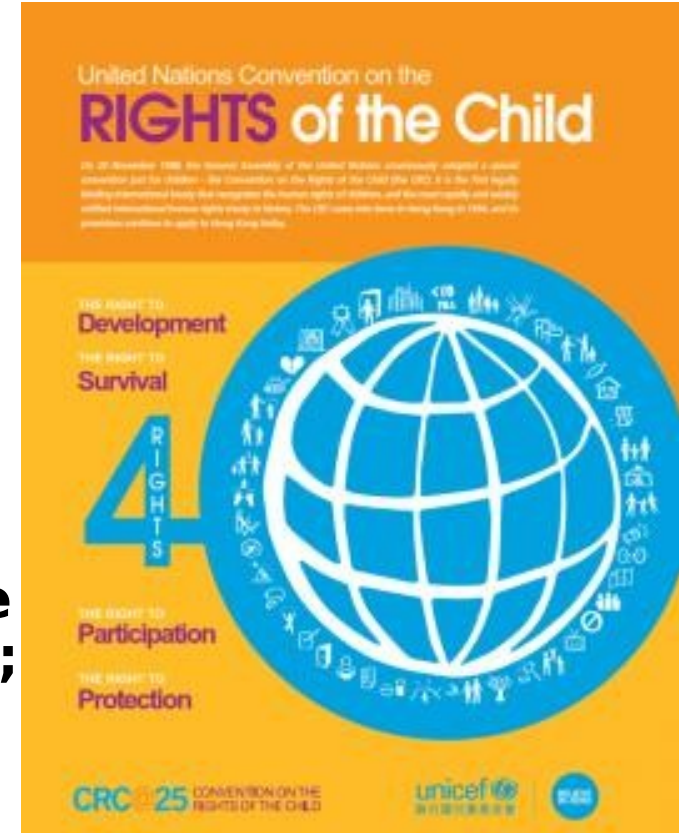
States **Parties recognize the right of the child to education**, and with a view to achieving this right progressively and on the basis of equal opportunity, they shall, in particular:

(a) Make primary education compulsory and available free to all;

(b) Encourage the development of **different forms of secondary education, including general and vocational education**, make them available and accessible to every child, and take appropriate measures such as **the introduction of free education and offering financial assistance in case of need;**

(c) Make higher education accessible to all on the basis of capacity by every appropriate means;

(e) Take measures to encourage regular attendance at schools and the reduction of drop-out rates.

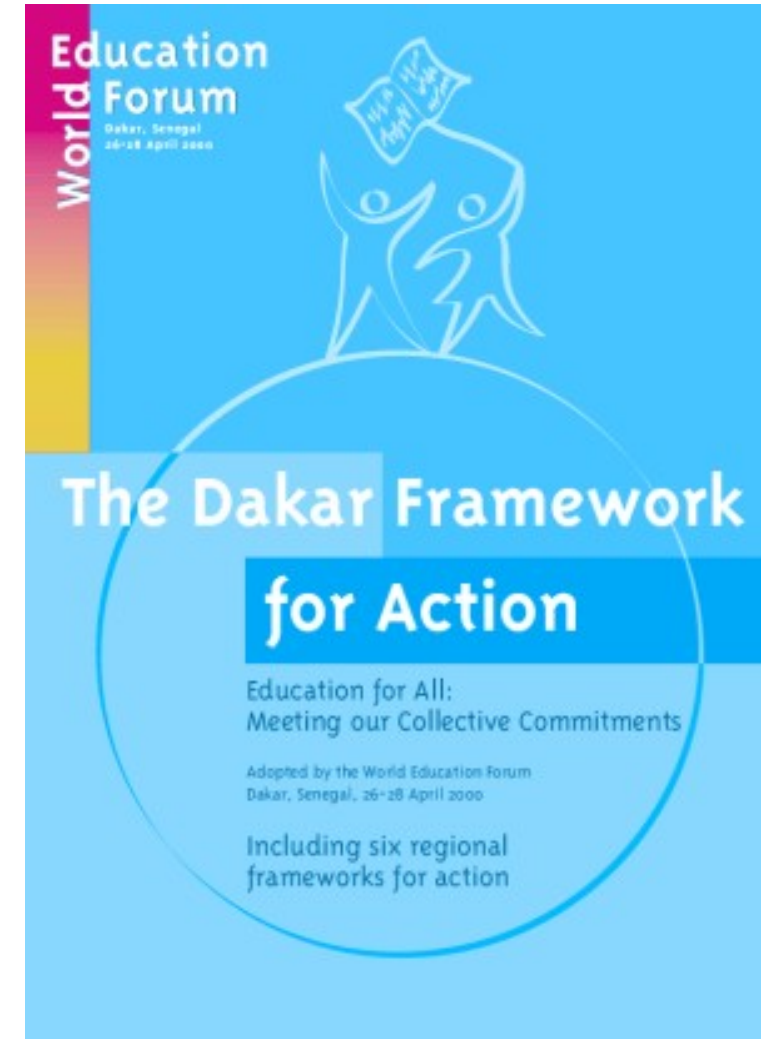


DAKAR CONFERENCE

Dakar Conference on education in 2000, put further International pressure for achieving Education for All (EFA).

- Goal 1: Expand early childhood care and education
- Goal 2: **Provide free and compulsory primary education for all**

2001: Sarva Shiksha Abhiyan- Programme mode



ROLE OF JUDICIARY

Landmark judgements: **Mohini Jain vs. State of Karnataka (1992)**,: **Right to Education** flows directly from the **Right to life of Indian constitution**.

▮ *The right to life under Article 21 and the dignity of an individual cannot be assured unless it is accompanied by the right to education.*



J P Unnikrishnan vs. State of Andhra Pradesh, 1993

▮ The Supreme Court held that the **right to basic education** is implied by the fundamental right to life (Article 21) when read in conjunction with the directive principle on education (Article 41). The Court held that the parameters of the right must be understood in the context of the Directive Principles of State Policy, including Article 45 which provides that the state is to endeavour to provide, within a period of ten years from the commencement of the Constitution, for free and compulsory education for all children under the age of 14.



Unni Krishnan, J.P. & Ors. v. State of Andhra Pradesh & Ors. 1993 AIR 217, 1993

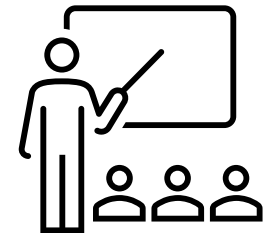
UNNIKRISHNAN CASE JUDGEMENT

1. The citizens of this country have a fundamental right to education. **The said right flows from Article 21. This right is, however, not an absolute right. Its content and parameters have to be determined in the light of Articles 45 and 41.** In other words, every child/citizen of this country has a right to free education until he completes the age of 14 years. Thereafter his right to education is subject to the limits of economic capacity and development of the State. [693B-C]



1.8. Thus, right to education, understood in the context of Articles 45 and 41, means:

- **(a) every child/citizen of this country has a right to. free education until he completes the age of 14 years, and**
- **(b) after a child/citizen completes 14 years, his right to education is circumscribed by the limits of the economic capacity of the State and its development**



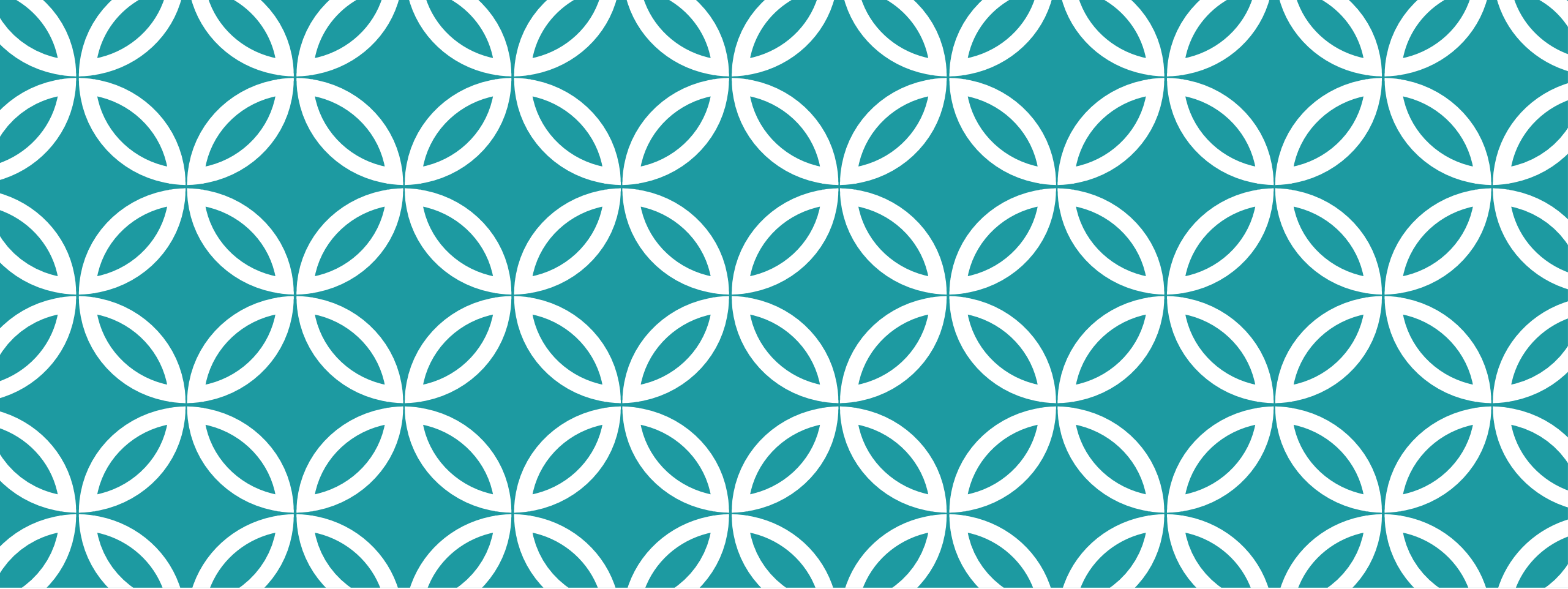
CONSTITUTIONAL AMENDMENT AND RTE ACT 2009

2002: 86th Constitution Amendment added Article 21A stating that “*The State **shall provide free and compulsory education to all children of the age 6 to 14 years in such as a way as the State may, by law, determine.***”

2005: CABE committee report constituted to **Draft the Right to Education Bill** submits its report.

- 2006 Model Right to Education Bill, 2006 drafted. Disputes citing lack of funds and reservations in private schools. RTE Bill threatened to be shelved.
- 2008 Working group of Ministry of Human Resource Development redrafts
- resulting in RTE Bill, 2008. Cleared by Union Cabinet in October 2008.

In **2009: The Right of Children to Free and Compulsory Education bill-** was passed. Came into effect April 2010



THE RIGHT OF CHILDREN TO FREE AND COMPULSORY ACT 2009



RTE - 2009

रजिस्ट्री सं. डी. एल.—(एन)04/0007/2003—09 REGISTERED NO. DL—(N)04/0007/2003—09


सत्यमेव जयते

भारत का राजपत्र
The Gazette of India

असाधारण
EXTRAORDINARY
भाग II — खण्ड 1
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PUBLISHED BY AUTHORITY

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No. 39] NEW DELHI, THURSDAY, AUGUST 27, 2009 / BHADRA 5, 1931

इस भाग में भिन्न पृष्ठ संख्या दी जाती है जिससे कि यह अलग संकलन के रूप में रखा जा सके।
Separate paging is given to this Part in order that it may be filed as a separate compilation.

MINISTRY OF LAW AND JUSTICE
(Legislative Department)

New Delhi, the 27th August, 2009/Bhadra 5, 1931 (Saka)

The following Act of Parliament received the assent of the President on the 26th August, 2009, and is hereby published for general information:—

**THE RIGHT OF CHILDREN TO FREE AND COMPULSORY
EDUCATION ACT, 2009**

No. 35 OF 2009

[26th August, 2009.]

RIGHT OF CHILDREN TO FREE AND COMPULSORY EDUCATION ACT -2009

State shall **ensure** a school in every child's neighborhood within three years. In case of non-availability, free transport or free residential facilities shall be provided.

Every school shall **conform to certain minimum standards** defined in the Bill (infrastructure, pupil teacher ratio).

No detention: No child shall be held back, expelled, or required to pass a board examination until the completion of elementary education.

Provides for 25 percent reservation for economically weaker communities in admission to Class One in all private schools (section 12(1)).

MHRD, The Right of Children to Free and Compulsory Education Bill, 2009 ,
<http://goo.gl/Vj3IGX>

Shivakumar Jolad , "Policy Brief On Right To Education Bill India" available at: <http://dise.in>

Umeshwari Dkhar , "Right to Education: A Critical Study", Kayadepundit

SOME ISSUES WITH RTE

Excludes 0-6 years and 15-18 years - UN Convention on rights of Child (Article 28)

Enhances permit raj: all non-government schools have to be recognized by a competent authority or shut shown.

One size fits all : 25 % reservation- all private and aided schools across India

“Equitable” quality is ill defined and not emphasized. “Universal attainment” objective neglected

Shivakumar Jolad ,”Policy Brief On Right To Education Bill India” available at: <http://dise.in>
PRS India, Legislative brief on “The Right of Children to Free and Compulsory Education Bill, 2009”
<http://goo.gl/sVvGPO>

PRE SCHOOL EDUCATION

RTE - section 11: has clause that **appropriate Government should provide for pre-school education.**

The number of children of age 3 to 5+ years who received pre-school education under the ICDS Scheme increased from 16.7 million in 2001-02 to 35.3 million in 2012-13. **Quality still remains a concern** (*Education for All- Towards Quality with Equity, NUEPA, 2014*)

Child right activists, have been demanding extension age group RTE to 3-6 years.

NEP 2020 has included ECCE in 5+5+3+4 restructuring , and recommended RTE to include 3-6 years of ECCE

SECTION 12-1(C): RESERVATION FOR ECONOMICALLY BACKWARD

There have been many challenges in the implementation of 12 (1) c , policy on 25% reservation in private schools, such **as insistence on ‘neighborhood’ school, lack of proper admission process,** and delays in reimbursements from the government , and **integrating students of diverse socio-economic backgrounds** in the class room.

NO DETENTION P

The no detention policy, has divided the community many educationalists supporting it (with CCE) and teachers and parents on the other side opposing it.

(2) It shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint.

35 of 2009.

2. In the Right of Children to Free and Compulsory Education Act, 2009 (hereinafter referred to as the principal Act), for section 16, the following section shall be substituted, namely:—

Substitution
of new
section for
section 16.

“16. (1) There shall be a regular examination in the fifth class and in the eighth class at the end of every academic year.

Examination
and holding
back in
certain cases.

(2) If a child fails in the examination referred to in sub-section (1), he shall be given additional instruction and granted opportunity for re-examination within a period of two months from the date of declaration of the result.

(3) The appropriate Government may allow schools to hold back a child in the fifth class or in the eighth class or in both classes, in such manner and subject to such conditions as may be prescribed, if he fails in the re-examination referred to in sub-section (2):

Provided that the appropriate Government may decide not to hold back a child in any class till the completion of elementary education.

(4) No child shall be expelled from a school till the completion of elementary education.”.

RECOGNITION, NORMS AND STANDARDS

Section 18, dealing with norms and standards for establishing schools has also run into contention, **as being too much infrastructure and input-centric and do not place any emphasis on teaching quality and learning outcomes.**

As a result, **schools that provide good quality education can be de-recognized because they do not comply with all the input-focused norms.** Recognition and norms are seen as biased against private schools.

NORMS: NO OF TEACHERS

No of teachers (C1-C5)

C6-C8

Admitted children	Number of teachers
Up to Sixty	Two
Between sixty-one to Ninety	Three
Between Ninety-one to One hundred and twenty	Four
Between One hundred and twenty-one to two hundred	Five
Above One hundred and fifty children	Five plus one Head-teachers
Above Two hundred Children	Pupil-Teacher Ratio (excluding Head-Teacher) shall not exceed forty.

(1) At least one teacher per class so that there shall be at least one teacher each for-

- (i) Science and Mathematics;
- (ii) Social Studies;
- (iii) Languages.

(2) At least one teacher for every thirty-five children.

(3) Where admission of children is above one hundred-

(i) a full time head-teacher;

(ii) part time instructors for-

(A) Art Education;

(B) Health and Physical Education;

(C) Work Education.

INFRASTRUCTURE

All-weather building consisting of-

- (i) at least one class-room for every teacher and an office-cum-store-cum-Head teacher's room;
- (ii) barrier-free access;
- (iii) separate toilets for boys and girls;
- (iv) safe and adequate drinking water facility to all children;
- (v) a kitchen where mid-day meal is cooked in the school;
- (vi) Playground;
- (vii) arrangements for securing the school building by boundary wall or fencing.

There shall be a 'library in each school providing newspaper, magazines and books on all subjects, including story-books.

- (i) two hundred working days for first class to fifth class;
- (ii) two hundred and twenty working days for sixth class to eight class;
- (iii) eight hundred instructional hours per academic year for first class to fifth class;
- (iv) one thousand instructional hours per academic year for sixth class to eight class.

RTE Act 2009 - Norms for primary Schools (Class First to Fifth)
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Admitted Children	No of Teachers required
upto sixty	Two
61-90	Three
91-120	Four
121-200	Five
Above 200	One teacher per Forty Children

above 150	Headmaster has to be posted
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RTE Act 2009- Norms for Middle Schools (Class Sixth to Eighth)

- 1- At least one teacher per class so that there shall be one teacher each for
 - Science
 - Social Studies
 - Languages
- 2- At least one teacher for every thirty five children
- 3- Where admission is more than one hundred
 - A full time headmaster has to be posted.
 - Part time teachers for Art education, health and Physical education, work Education